

# HOUSE . . . . . No.

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Hadley Luddy and Julian Cyr*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to year-round housing occupancy restrictions and attainable housing restrictions  
in the town of Chatham.

PETITION OF:

| NAME:               | DISTRICT/ADDRESS:     | DATE ADDED:      |
|---------------------|-----------------------|------------------|
| <i>Hadley Luddy</i> | <i>4th Barnstable</i> | <i>6/24/2026</i> |

# HOUSE . . . . . No.

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By Representative Luddy of Orleans and Senator Cyr, a joint petition (subject to Joint Rule 12) of Hadley Luddy (by vote of the town) relative to year-round housing occupancy restrictions and attainable housing restrictions in the town of Chatham. Housing. [Local Approval Received.]

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to year-round housing occupancy restrictions and attainable housing restrictions in the town of Chatham.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Section 1. Notwithstanding the Restrictions set forth and defined in MGL Chapter 184  
2   Section 31, the Town of Chatham may expend funds for the purchase of, or otherwise acquire; or  
3   may convey, Year-round Housing Occupancy Restrictions and Attainable Housing Restrictions,  
4   as defined in 760 CMR 76.00: Seasonal Communities, which serve a critical and necessary  
5   public purpose similar to Affordable Housing Restrictions, either in perpetuity or for a specified  
6   number of years, whether stated in the form of a restriction, easement, covenant or condition in  
7   any deed, mortgage, will, agreement, or other instrument executed by or on behalf of the owner  
8   of the land appropriate to (a) limiting the use of all or part of the land to year-round occupancy or  
9   occupancy by persons, or households of attainable income up to 250% AMI, in either rental  
10   housing or other housing; (b) restricting the resale price of all or part of the property in order to  
11   assure its affordability by future year-round occupant purchasers or attainable income  
12   purchasers; (c) in any way limiting or restricting the use or enjoyment of all or any portion of the

13 land for the purpose of encouraging or assuring creation or retention of rental and other housing  
14 for year-round occupancy or occupancy by attainable income persons and households.

15 Section 2. Any restriction contemplated and executed hereunder shall not require the  
16 approval or execution of the Executive Office of Housing and Livable Communities (as  
17 successor to the Department of Housing and Community Development) as may otherwise be  
18 required under Section 32 of Chapter 184 of the General Laws.

19 Section 3. This act shall take effect upon its passage.